

STATE OF NORTH CAROLINA WAKE COUNTY	BEFORE THE DISCIPLINARY HEARING COMMISSION OF THE NORTH CAROLINA STATE BAR 23 DHC 11R
THE NORTH CAROLINA STATE BAR, Plaintiff v. NICOLLE T. PHAIR, Attorney, Defendant	CONSENT ORDER FOR STAY OF SUSPENSION

This matter was considered by Jaye P. Meyer, Chair of the Disciplinary Hearing Commission. Plaintiff was represented by Robert Weston and Savannah P. McLamb. Defendant, Nicolle T. Phair ("Phair"), was represented by Joshua T. Walthall and Alan M. Schneider. The parties stipulate to the findings of fact set forth herein.

Based upon the pleadings in this matter, the parties' stipulations of fact, and with the consent of the parties, the undersigned Chair hereby finds by clear, cogent, and convincing evidence the following:

Findings of Fact

1. By Consent Order of Discipline entered 7 November 2024 ("the Consent Order"), Phair was suspended for three years from the practice of law, effective 14 January 2025. The Consent Order permitted Phair to apply for a stay of the remaining term of the suspension imposed by the Order after serving no less than six months of the suspension by filing a motion in the cause pursuant to 27 N.C. Admin. Code 1B .0118(c).

2. As of 14 July 2025, Phair served six months of active suspension.

3. On 24 July 2025, Phair filed a verified Petition for Stay seeking to stay the remaining term of the suspension imposed by the Consent Order.

4. In the petition, Phair verified that she qualifies for a stay because she complied with all conditions for stay set forth in decretal paragraphs 5(a) through (h) of the Consent Order.

5. Phair substantially complied with the requirements of 27 N.C.A.C. 1B § .0118(c) and the conditions set forth in the Consent Order of Discipline.

Based upon the foregoing Findings of Fact, the undersigned Chair hereby makes the following:

Conclusions of Law

1. All parties are properly before the Disciplinary Hearing Commission and the Disciplinary Hearing Commission has jurisdiction over Defendant, Nicolle T. Phair, and the subject matter of this proceeding.

2. Defendant, Nicolle T. Phair, has substantially satisfied the requirements set out in Rule .0118(c) of the North Carolina State Bar Discipline and Disability Rules and the conditions in the Consent Order of Discipline for stay of the remaining term of the suspension.

THEREFORE, it is hereby ORDERED Phair's 24 July 2025 verified Petition for Stay is ALLOWED. Phair shall be permitted to resume practicing law for the remaining period of the three-year suspension so long as Phair complies and continues to comply with the conditions set forth in decretal paragraphs 6(a) through (f).

Signed by the Chair of the Disciplinary Hearing Commission, this the 6th day of October 2025.

Jaye P. Meyer, Chair
Disciplinary Hearing Commission

Agreed and consented to by:

Savannah P. McLamb
Attorney for Plaintiff

Robert Weston
Attorney for Plaintiff

Joshua T. Walthall
Attorney for Defendant

Alan M. Schneider
Attorney for Defendant